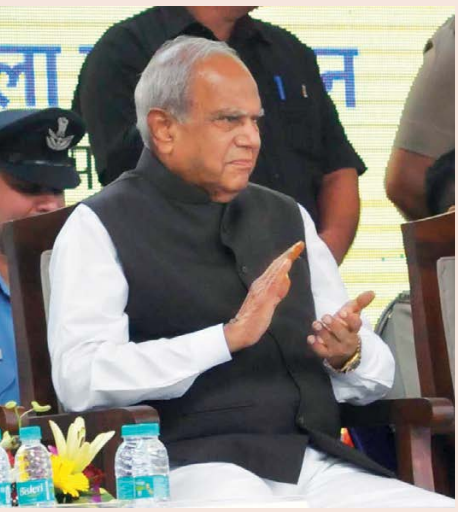


NO LOVE LOST Punjab CM Mann and governor Purohit at an official function in Chandigarh

THE SOLUTION

Some half a dozen commissions and several studies have recommended steps to reduce the conflict

- Governors should be consulted at the stage of drafting the bill
- There should be a time limit, say 6 months, for governors to dispose of bills
- Governor should make the reasons for their actions public
- Governor's discretionary powers should be limited to only those bills deemed to need the President's consideration (for rare cases of unconstitutionality)
- The word 'withhold' must be deleted via constitutional amendment
- Governor's tenure must be fixed to free him/ her from political influence
- Appointment or removal of governors should not be the prerogative of ruling party alone
- State CMs should be consulted before appointing a governor

GOVERNMENTS AT THE CENTRE HAVE DUCKED THE VARIOUS PROPOSALS ON IMPROVING CENTRE-STATE TIES, GOVERNOR'S ACTIONS

with then governor Bhagat S. Koshyari over the Speaker's appointment. In Tamil Nadu, Ravi even declined to read out passages praising the DMK model of governance during his speech to the assembly.

The SC has time and again reminded governors about the limits of their discretionary power. For instance, in 2016, exploiting a constitutional loophole, Arunachal Pradesh governor Jyoti Prasad Rajkhowa summoned an assembly session without consulting the CM. The apex court later declared the move unconstitutional. "The governor can summon, prorogue and dissolve the House only on the aid and advice of the council of ministers with the CM as the head. And not at his own will," the bench led by then Chief Justice J.S. Khehar held in an unanimous judgment.

Judicial intervention has rapped gubernatorial overreach on several contentious issues. In the 1994 *S.R. Bommai vs Union of India* case, the SC said the proclamation of President's rule by the governor was not immune to judicial review, adding that a floor test was the only way to assess the state government's strength. The impact of this verdict was massive—between 1967 and 1993, the number of states that had President's rule was six per year on average. After 1994, the number fell to 1.5.

THE WAY FORWARD

Over the years, multiple commissions were formed to review Centre-state ties. The Sarkaria Commission prescribed a time limit to decide on bills and added that the governor can use his discretion only to reserve those bills that are for the consideration of the President. The latter should dispose of them within six months. If the President 'withholds assent', the reasons should be communicated to the state government wherever possible. No government at the Centre, however, has taken up any of the recommendations of the various commissions.

Analysts say that governors act the way they do because they are political appointees, often selected for ideological loyalties or as a reward for past services. A study by Prof. Ashok Pankaj of governors from 1950 to 2015 found that 52 per cent of them were politicians and 26 per cent retired bureaucrats (see *Who Can Become a Governor?*). Noted historian Mukul Kesavan says the manner of their appointment and the uncertainty on tenure make governors a "creature of the central government in politically charged circumstances rather than a disinterested umpire". To 'immunise' them from political bias, the Justice Venkatachaliah Commission proposed that governors be appointed by a collegium consisting of the PM, the CJI and the leader of the Opposition in the Lok Sabha.

Interestingly, to end the monopoly of the Centre selecting its 'own man', the BJP, along with the Left Front government in Bengal, had in the 1980s, suggested that the appointment be made from a panel prepared by the state legislature with the appointing authority being the Inter-state Council, not the central government. Critics argue that at the root of the conflict is the constitutional ambiguity over the governor's powers. Several aspects dealing with the governor's powers have been settled by the apex court in the past. It may now have to decide on another soon. ■